

that safe harbour is conditional, and conditional on them addressing the 11 types of content that they cannot have on their platforms. And the way we will now regulate deepfakes is in the rules we enacted in April 2023. If any platform has a deepfake, whether it's a messenger platform or a social media platform, when it is reported to them, they have 36 hours to remove it. If they do not, then the safe harbour falls away, whoever is aggrieved can take them to court and criminally prosecute them under the IPC (Indian Penal Code) and the IT Act. We have told these platforms that we consider deepfakes and misinformation a very severe risk and a danger to the safety and trust obligation that we believe we owe to the people of India and to the users of the Indian internet. And that we will not hesitate, for every instance of deepfake, to ensure that rule 7, which is the withdrawal of safe harbour, is invoked for them to be prosecuted in a court of law by whichever citizen or organisation is aggrieved by the defect.

Q. What else will the government be doing to check the menace?

The government has a standard operating procedure. We wanted to create a fact-check unit that will help the industry, the platforms, know what is wrong and right. The rules have been enacted already and notified, but they have, unfortunately, been challenged in the Mumbai court by some quarters who claim it is an infringement of freedom. We hope the court will rule in our favour.

Q. The concern is that the government will use it to gain control over the flow of information and that it should be run by an independent authority instead.

Again, unfortunately, and I say this with a great deal of responsibility, when we talk of free speech, we think of it as a binary of freedom and some sort of censorship. That is not true. Under Article 19.2 of our Constitution, there are reasonable restrictions on free speech that have been placed by those who amended Article 19 during Jawaharlal Nehru's time. So, therefore, in India, unlike the US, First Amendment free speech is not an unfettered absolute right. There are things that you cannot say in the name of free speech and our policy is consistent with 19.2. This is really about making sure deepfakes, misinformation, which are a clear and present danger to the safety and trust and orderly nature of the Indian internet, are dealt with in a manner where the platforms are held accountable under the law—not by the government—under the law, where they have the right to plead their case in a court against whoever is aggrieved by deepfake or misinformation.

Q. Have social media platforms themselves developed internal mechanisms to deal with the problem?

AI is something that is deeply disruptive, is tectonically changing the landscape and is defining the new normal. Whether you are Facebook or Twitter or Google or YouTube, everybody is playing catch-up with the power of AI that has been unleashed. So, I will give them the benefit of the doubt. We are not adversaries. We will work in partnership with the platforms. But we certainly want to reiterate that the prime minister has raised it [the issue] not from a political prism alone, that it can create great disruption within families, within communities, within a village and within a town if you allow this menace to go unpoliced or unregulated.

> **"DEEPFAKES CAN CREATE GREAT DISRUPTION WITHIN FAMILIES, WITHIN COMMUNITIES, IF WE ALLOW THIS MENACE TO GO UNPOLICED OR UNREGULATED. WE NEED TO HAVE A SENSE OF URGENCY"**

Q. While we have the technology to create deepfakes, have social media platforms developed a technology to detect them?

One of the characteristics of technology is that you will have innovation and it will have its own harms. Then, the technology to police the harms of the innovation will be the next innovation. So, this is always playing lead and catch-up. That has always been the nature of the beast of technology. The difference in this case is that AI today is growing exponentially in terms of its impact, at a rate that nobody anticipated. With its impact so deep, so widespread and its application so easily possible, people are all, in a sense, caught unawares by the pace at which this is going. So, I think the platforms are also very clearly working frantically to play catch-up with their own technology with their own tools. We will work with these platforms and we will